



SUMMARY REPORT

Agenda Date: 9/24/2019

To: Board of Directors of the Sonoma County Agricultural Preservation and Open Space District

Department or Agency Name(s): Agricultural Preservation and Open Space District

Staff Name and Phone Number: Sheri Emerson 565-7358; Monica Delmartini 565-7260

Vote Requirement: Majority

Supervisory District(s): 1st

Title:

Adoption of the Saddle Mountain (0024) Management Plan and the Initial Study and Mitigated Negative Declaration for the Project

Recommended Action:

- A) Adopt a Resolution Determining that the Saddle Mountain Open Space Preserve Management Plan Project Will Not Have A Significant Effect On The Environment;
- B) Adopt the Initial Study and Mitigated Negative Declaration for the Saddle Mountain Open Space Preserve Management Plan Project;
- C) Adopt Mitigation Measures and a Mitigation Monitoring Plan for the Saddle Mountain Open Space Preserve Management Plan Project;
- D) Approve the Saddle Mountain Open Space Preserve Management Plan Project; Make Associated Findings; and Authorize the Filing of a Notice of Determination. (First District)

Executive Summary:

The Saddle Mountain Open Space Preserve is a 960-acre property purchased by the Sonoma County Agricultural Preservation and Open Space District in 2006 for its natural resources, scenic vistas, and sensitive habitat. The Saddle Mountain Open Space Preserve is located northeast of the city of Santa Rosa and east of Calistoga Road.

The Sonoma County Agricultural Preservation and Open Space District has prepared a proposed management plan for the Saddle Mountain Open Space Preserve. The plan describes the natural and cultural resources as well as highlights the important conservation values and history of the property. The plan provides prioritized management recommendations to address specific threats like soil erosion, invasive species, and fuel loading that might have a significant impact on the protection of these conservation values.

The Sonoma County Agricultural Preservation and Open Space District completed an Initial Study and Mitigated Negative Declaration for the plan in compliance with the California Environmental Quality Act to identify any potential impacts to the natural and cultural resources within the preserve that may result from implementation of the plan. This analysis concluded that certain management recommendations could cause environmental or cultural impacts, but these impacts could be reduced to a "less than significant" level with

mitigation measures. Therefore, the Sonoma County Agricultural Preservation and Open Space District requests that the Board adopt the Final Draft Initial Study/Proposed Mitigated Negative Declarations and Mitigation Monitoring Plan prepared for the management plan and approve the proposed management plan.

Discussion:

Background

The Saddle Mountain property had been considered for subdivision and development since the 1970s, with the Board of Supervisors approving the final subdivision plan in 2005. In 2006, in response to strong public support for protecting the property as open space, the Sonoma County Agricultural Preservation and Open Space District (“Ag + Open Space”) completed the acquisition of the Saddle Mountain property, protecting approximately 960 acres in the Mayacama Mountains and Mark West Creek watershed, northeast of the City of Santa Rosa, to preserve the property’s natural and scenic resources and rare and endangered species habitat. Ag + Open Space renamed this property Saddle Mountain Open Space Preserve (“Preserve”). Saddle Mountain Open Space Preserve contains significant portions of three tributaries to Mark West Creek, which provides critical habitat for salmonids. The Preserve contains a wide range of habitats, including grasslands, chaparral, oak woodlands, Sargent cypress forest, and redwood and Douglas fir groves, and is home to one of the few known populations of federally endangered Clara Hunt’s milk vetch.

In 2006, Ag + Open Space received a \$1,000,000 grant from the California State Coastal Conservancy to assist with acquisition of the property and the planning, resource assessments, and California Environmental Quality Act (“CEQA”) analysis necessary for the management plan. Ag + Open Space completed the resource assessments between 2006 and 2019, and has prepared the Saddle Mountain Open Space Preserve Management Plan (“Project”).

Currently, Ag + Open Space relies on a volunteer patrol team and consultant partners to assist with monitoring and stewarding the Preserve. Ag + Open Space and its partner organizations offer education outings and stewardship days to enable community members to visit and care for the Preserve. Ag + Open Space also has allowed researchers to use the property for studies relating to hydrology and wildlife use. No other public access to the Preserve is currently permitted. Ag + Open Space plans to transfer ownership of the Preserve to another entity in the future, while retaining a Conservation Easement to permanently protect natural resource and scenic conservation values. After ownership transfer, future uses, including additional forms of public access, will be evaluated through a public process to develop a Master Plan for the Preserve. All uses will need to be consistent with the Conservation Easement retained by Ag + Open Space at the time of transfer.

Purpose of CEQA Analysis

The purpose of the Initial Study/Proposed Mitigated Negative Declarations (“IS/MND”) for the management plan for Saddle Mountain Open Space Preserve is to evaluate the potential environmental impacts from the

implementation of the proposed Project. Based on the analysis contained in the Initial Studies for the Project, it was determined that the proposed Project would not result in any significant impacts that cannot be mitigated to less than significant levels. Therefore, Ag + Open Space prepared a Mitigated Negative Declaration for the management plan, as required by CEQA.

CEQA Findings

The specific activities identified in the Saddle Mountain Open Space Preserve Management Plan that have the potential to impact natural and cultural resources include: 1) erosion control projects along existing ranch roads; 2) invasive species control; and 3) fuel management and prescribed fire.

The following is an example of a mitigation measure for the specified activities, to avoid loss of special-status plants and their habitats:

Ag + Open Space shall ensure that the following protection measures for special-status plants and their habitat are implemented during management activities. Where avoidance of individuals or habitat is infeasible, Ag + Open Space shall compensate for loss as required by CDFW and USFWS:

- Ag + Open Space shall conduct a botanical survey to ensure that no special-status plants are present in the area of potential ground disturbance prior to initiation of work. If special-status plants or their habitat are not identified during initial site surveys, no further mitigation for impacts on target species is necessary under this measure. Surveys shall be conducted at the appropriate time for plant identification, and shall be conducted by a botanist experienced with Sonoma County sensitive species.
- Ensure that special-status plants and their habitat are not damaged during road erosion control and drainage improvement activities. Napa false indigo is most likely to occur in these locations. Train crews to recognize this species prior to ground-disturbing activities, and have a trained supervisor oversee all work in areas where this plant occurs.
- Ensure that special-status plants and their habitat are not damaged by invasive species control efforts. Invasive species control is planned in or near locations supporting Lobb's aquatic buttercup, Napa false indigo, and Clara Hunt's milk vetch. Ensure that control efforts do not damage these plants, their seedbank, or habitat conditions. Prior to invasive control work, determine whether any known special-status occurrences are present within 100 feet. If so, a natural resource specialist or botanist shall plan and supervise the work.
- Ensure that special-status plants and their habitat are not damaged by fuels reduction, prescribed fire, or other vegetation thinning efforts. Fuels reduction is proposed along the Erland-Cleland Tie Road, along which Napa false indigo occurs. Prior to work, determine whether any known special-status plant occurrences are present within 100 feet. If so, a natural resource specialist or botanist shall plan and supervise the work (in conjunction with other specialists as needed).

- Ensure that Clara Hunt's milk vetch populations are protected from impacts associated with Preserve access. Ag + Open Space shall install sensitive area flagging around the known population area to route Ag + Open Space staff, Preserve patrollers, and visitors around known population areas. The flagged areas may vary slightly from year to year based on the location of individual plants. Ag + Open Space shall educate Preserve patrollers and other visitors about the importance of avoiding impacts on individual plants in the flagged areas. Ag + Open Space shall continue to monitor the number of individuals annually.
- Any herbicide application to treat non-native plants must ensure that no special-status plants are affected.

Public Outreach Efforts

On February 8, 2015, Ag + Open Space hosted a public meeting at the Rincon Valley Public Library in Santa Rosa to seek public input from neighbors, volunteer patrol members, and partner organizations on the proposed Project. On May 6, 2019, the public was notified of the Project through a posting in the Press Democrat; via the Ag + Open Space newsletter and website; via signage at the Preserve entrances; and by direct mailing to neighbors within one half mile of the Preserve, members of the Volunteer Patrol program, the Friends of the Mark West Watershed, and other identified stakeholders, and invited to provide written comments to Ag + Open Space on the Initial Study and Proposed Mitigated Negative Declaration. A second public meeting was held at the Rincon Valley Public Library on May 6, 2019 during the public comment period. The public comment period concluded on June 3, 2019.

Public Comments

One comment was received from a public agency, California Department of Fish and Wildlife ("CDFW"), and two comments were received from the general public (see Response to Agency Comments in the IS/MND for the Saddle Mountain Open Space Preserve Management Plan). Additionally, 21 comments were received during the question-and-answer period of the May 6 public meeting; a transcript of these questions and the District's responses is in the IS/MND (see Public Hearing Comments). CDFW expressed specific concerns about the protection and viability of the Clara Hunt's milk vetch population. The District has accepted CDFW's recommendation to continue annual monitoring of the population on the Preserve and request permission from a neighboring landowner to annually monitor a population on a property protected by an Ag + Open Space conservation easement, and to implement small-scale management trials such as thatch raking within test plots.

The remaining public comments largely came from neighboring landowners curious about planned management projects, the condition of the Preserve's roads, opportunities for Ag + Open Space to partner with researchers, and clarification on public access opportunities. Ag + Open Space staff addressed these questions during the May 6 public meeting, and also prepared a written response to these public comments,

included in the Public Hearing Comments section of the IS/MND.

Prior Board Actions:

- January 10, 2006: Resolution No. 06-0041, approving the acquisition of the Saddle Mountain Property (now known as Saddle Mountain Open Space Preserve)
- January 10, 2006: Resolution No. 06-0042, rescinding the existing subdivision agreement and approving a grant agreement between Ag + Open Space and State Coastal Conservancy for \$1,000,000
- November 20, 2012: The Board approved Ag + Open Space's Fee Lands Strategy

FISCAL SUMMARY

Expenditures	FY 19-20 Adopted	FY20-21 Projected	FY 21-22 Projected
Budgeted Expenses			
Additional Appropriation Requested			
Total Expenditures	0.00		
Funding Sources			
General Fund/WA GF			
State/Federal			
Fees/Other			
Use of Fund Balance			
Contingencies			
Total Sources	0.00		

Narrative Explanation of Fiscal Impacts:

There is no fiscal impact as a result of today's item approving the Master Plan and adopting the Mitigated Negative Declaration.

Staffing Impacts:			
Position Title (Payroll Classification)	Monthly Salary Range (A-I Step)	Additions (Number)	Deletions (Number)

Narrative Explanation of Staffing Impacts (If Required):**Attachments:**

1. Resolution

Agenda Date: 9/24/2019

2. Regional Location Map
3. Project Location Map

Related Items “On File” with the Clerk of the Board:

1. Management Plan
2. Final Initial Study/Mitigated Negative Declaration
3. Mitigation Monitoring and Reporting Program
4. Fee Lands Strategy